

19STCV04964 19STCV04964

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F10%2F2026

Source SHA-256: 6d88bce0ecfb1480ae73d42dd2c71b5ab0a56259f6df03b67251990bf141ffb7

Case Number: 19STCV04964 Hearing Date: August 10, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

BLAISE VERDI,

Plaintiff,

vs.

BMW OF NORTH AMERICA, LLC, et al.,

Defendants.

Case No.:

19STCV04964

Hearing Date:

August 10, 2026

Hearing Time: 10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF BLAISE

VERDI'S MOTION FOR ATTORNEY FEES AND COSTS

Background

On

February 13, 2019, Plaintiff Blaise Verdi ("Plaintiff") filed this lemon law action against Defendants BMW of North America, LLC ("BMW") and Robert A. Smith, Inc. dba Bob Smith BMW (jointly, "Defendants"), alleging three causes of action for (1) breach of implied warranty, (2) breach of express warranty, and (3) negligent repair.

On

September 4, 2025, Plaintiff accepted an offer to compromise from Defendants.

On

June 10, 2026, the Court granted Plaintiff's request for attorney fees in the amount of \$242,767.50.

On

January 7, 2026, Plaintiff filed a memorandum of costs in the total amount of \$20,694.35 and served Defendants on February 24, 2026.

On

March 12, 2026, BMW moved to strike or tax Plaintiff's memorandum of costs. Plaintiff opposes. BMW replied.

Legal

Standard

"Any buyer of consumer

goods who is damaged by a failure to comply with any obligation under this chapter, [Sale Warranties §§ 1792 et. seq.]

or under an implied or express warranty or service contract may bring an action for the recovery of damages." ((Civ. Code, § 1794, subd.

(a).) "If the buyer prevails in an action under [Civil

Code section 1794], the buyer shall be allowed by the court to recover as

part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Pursuant

to Code of Civil Procedure section 1032, subdivision

(b), "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." "'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc. § 1032, subd. (a)(4).)

Costs

recoverable under section 1032 are restricted to

those that are both reasonable in amount and reasonably necessary to the conduct of the litigation. (Code Civ. Proc., § 1033.5, subds. (c)(2)-(3).) Costs

"merely convenient or beneficial" to the preparation of a case are disallowed.

(Code Civ. Proc., § 1033.5, subd. (c)(2); see *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (*Ladas*) [expenses for attorney meals incurred while attending local depositions not "reasonably necessary"].)

"A

'verified memorandum of costs is prima facie evidence of [the] propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." ((*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486-1487.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." ((*Ladas, supra*, 19 Cal.App.4th at p. 774.) Costs otherwise allowable as a matter of right may be disallowed if the court determines they were not reasonably necessary, and the court has power to reduce the amount of any cost item to an amount that is reasonable. (See *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992)

4 Cal.App.4th 238, 245 [finding that “the intent and effect of section 1033.5, subdivision (c)(2) is to authorize a trial court to disallow recovery of costs, including filing fees, when it determines the costs were incurred unnecessarily”].)

Discussion

Plaintiff’s total costs

of \$20,694.35 comprise \$735 in filing and motion fees, \$5,231.65 in deposition costs, \$125 in service of process, \$9,025 in witness fees, \$2,525 in court reporter fees as established by statute, \$536.56 in fees for electronic filing or service, and \$2,516.14 in other costs.

A. Item No 1:

Filing and Motion Fees

BMW

contends

that “Plaintiff has not submitted any receipts or evidence showing the actual amount of costs incurred. The Memorandum of Costs form requires that electronic filing or service fees be claimed under Item 15. Without supporting evidence, neither BMW NA nor the Court can determine what portions of the amount claimed under Item 1 are attributable to Court fees and which are attributable to electronic filing fees.” (Mot., 4:23-28.) BMW also contends that “Plaintiffs filed unnecessary motions including a Motion to Compel and Motion to Compel Compliance even though they already had all the information they needed about the repair history of Plaintiffs’ vehicle before they filed suit... The motion was entirely unnecessary and the cost of filing it was not reasonably incurred.” (Mot., 5:1-7.)

As

noted above, “[a] ‘verified memorandum of costs is prima facie evidence of [the] propriety’ of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” ((Adams

v. Ford Motor Co., supra, at pp.

1486-1487.) BMW does not cite to any law demonstrating that a Plaintiff cannot recover for the costs of filing a motion. Nor does BMW demonstrate to the Court, with law or otherwise, that Plaintiff’s failure to include receipts invalidates the request. On the contrary, Plaintiff’s verified memorandum of costs is per se reasonable.

BMW also does not provide evidence that the items listed as filing fees were not filing fees. Based upon the amounts listed, they appear to match the Court's filing fees. BMW does not carry its burden to demonstrate that taxing Plaintiff's filing fees is necessary.

B. Item No. 4:

Deposition Costs

BMW

moves

to tax \$2,615.83 of Plaintiff's \$5,231.65 in claimed costs for depositions.

Code of Civil Procedure section 1033.5,

subdivision (a) allows costs for "[t]aking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed," and for "[t]ravel expenses to attend depositions." (Id. at (3)(A), (3)(C).)

BMW

asserts

that "[a] substantial portion of the deposition charges should be reduced.

First, deposition transcripts of Bob Smith BMW's PMK are subject to close scrutiny. Tony Hawkins was Bob Smith BMW's PMK. The \$3,318.55 in deposition claimed charges regarding the deposition of Tony Hawkins/Bob Smith BMW's PMK appear duplicative. Second, with respect to Joe Grijalva, Defendant's expert, Plaintiff seeks recovery of transcript charges where necessity has not been demonstrated. Third, any portion of deposition transcript costs associated with Dan Calef should be reduced to avoid duplicating costs Plaintiff improperly seeks in the expert category." (Mot., 5:19-26.)

Plaintiff's

opposition asserts that "BMWNA does not give any explanation how seeking the depositions of witnesses 'did not advance' the case. These costs are specifically allowed under Code of Civil Procedure Section 1033.5(a)(3)(A) and are reasonable under Civil Code Section 1794(d)." (Opp., 8:9-12.) In support, Plaintiff includes "copies of [i]nvoices related to all the challenged costs in Plaintiffs' Memorandum and separated out by tabs for each section." (Barry Decl., ¶ 5, Ex. 1.)

The

Court finds that BMW does not demonstrate how these costs are duplicative, nor does BMW explain why the deposition costs are unreasonable. After seeing the invoices attached to Plaintiff's opposition, BMW merely concludes that "Plaintiff does not establish why it was reasonable to take multiple depositions and to serve multiple subpoenas." (Reply, 2:15-16.) It is not unreasonable to take multiple depositions. Additionally, Plaintiff's invoices confirm that the fees related to expert Dan Calef are not duplicative. Accordingly, the Court declines to tax Plaintiff's requested deposition costs.

C. Item No. 5:

Service of Process

BMW

moves

to tax \$125 in claimed costs for service of process as "excessive" and "not reasonably incurred." (Mot., 6:11.) Code of Civil

Procedure section 1033.5, subdivision (a)(4) expressly allows recovery for service of process fees. BMW does not demonstrate that the \$125 in claimed costs was not reasonably incurred. Accordingly, the Court declines to tax the costs for service of process.

D. Item No. 8:

Witness Fees

BMW

seeks

to tax Plaintiff's expert fees. BMW asserts that "Plaintiff has not presented any evidence to show that the time and hourly rates charged by his expert, Dan Calef, were reasonable. Plaintiff's claim for \$9,025.00 in expert fees for Mr. Calef is unreasonable, unsubstantiated and excessive for a case that did not even make it to trial." (Mot., 6:15-17.)

Plaintiff's

opposition cites *Jensen v. BMW of North America, Inc.*

(1995) 35 Cal.App.4th 112,

where the Court of Appeal found that the trial court erred in denying the

plaintiff's expert witness fees. (Disapproved on another ground in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189.) The court articulated that "Code of Civil Procedure section 1033.5 ... expressly

excludes '[f]ees of experts not ordered by the court ... except when

expressly authorized by law.' [Whereas Civil Code] Section

1794, subdivision (d), permits the prevailing buyer to recover both 'costs' and 'expenses.' Examining the language of the statute, it is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Id. at p. 137.) After reviewing the legislature history, the court found that "the Legislature exercised its power to permit the recovery of expert witness fees by prevailing buyers under the Act." (Id. at p. 138.) The court ultimately "remand[ed] the case to permit the court to determine whether the amount of fees sought by [the plaintiff] were 'reasonably incurred by the buyer in connection with the commencement and prosecution of [this] action.'" (Ibid.)

BMW's

reply

addresses Jenson, asserting that costs must still be reasonably incurred and "Jenson only approved an award of expert fees, not travel, mileage and the other costs that Plaintiffs are claiming." (Reply, 3:9-10.) However, looking at the invoices for Plaintiff's expert, it does not appear that Plaintiff is seeking travel costs related to the expert beyond one part of the invoices that states "[i]n office consultation (not inspection related) including travel on 9-26-2024." (Barry Decl., Ex. 1.) Given what the Jenson court expressed, and the assertions presented by BMW, the Court finds that BMW does not carry its burden to demonstrate that the expert fees were not "reasonably necessary to the conduct of the litigation." (Code of Civ Proc., § 1033.5, subd. (c)(2).) Accordingly, the Court declines to tax the expert fee costs.

E. Item No. 11:

Court Reporter Fees as Established by Statute

BMW

next

moves to tax \$2,525 in claimed costs for court reporter fees, asserting that the "fees are excessive on their face." (Mot., 6:26-27.) Code of Civil Procedure section 1033.5 subdivision (a)(11) authorizes recovering "[c]ourt reporter fees as established by statute."

Plaintiff asserts that he "arranged to have court reporters present for specific hearings. As there is complete shortage of court reporters in the state and this Court does not have a

court reporter provided, the only way Plaintiff can have a record of these hearings is to hire their own. The SBA, intent of the legislature, and discretion of this Court expands costs and expenses recoverable and permits recovery of these costs incurred.” (Opp., 8:21-26.)

Government

Code section 68086, subdivision (d)(2) provides “[t]hat if an official court reporter is not available, a party may arrange for, at the party's expense, the presence of a certified shorthand reporter to serve as an official pro tempore reporter. At the arranging party's request, the court shall appoint the certified shorthand reporter to be present in the courtroom and serve as the official reporter pro tempore unless there is good cause shown for the court to refuse that appointment. The fees and charges of the certified shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law.” Government Code section 68086 permits recovery of court reporter fees unless another law governs, controls, or supersedes it. The Court's docket demonstrates that there were multiple orders appointing an official Court Reporter Pro Tempore on August 14, 2020, May 9, 2025, and May 22, 2025.

Accordingly, the Court does not tax or strike Plaintiff's court reporter fees.

F. Item No. 14:

Fees For Electronic Filing or Service

BMW

challenges

the \$535.56 Plaintiff seeks “in electronic filing and courtesy copy charges. Courts have repeatedly held such charges are not recoverable unless mandated by local rules or specific Court Orders.” (Mot., 7:13-15.) “Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents” are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(14).) The Court requires electronic filings and courtesy copies. Accordingly, these costs are recoverable, and BMW does not present anything to demonstrate that the amount sought is unreasonable.

G. Item No. 15:

“Other”

Lastly,

BMW

challenges

the \$2,516.14 in claimed “Other” costs as not recoverable because it is “for travel, attorney services, and court appearance costs.” (Mot., 7:20.)

BMW

asserts

that it is “not obligated to reimburse Plaintiffs for travel, feed Plaintiff’s attorneys, or pay for Plaintiffs’ attorneys’ overhead.” (Mot., 7:23-24.) In support, BMW cites *Ladas v. California State Auto.*

Assn. (1993) 19 Cal.App.4th 761, 775-776, where the court stated that

“[t]he only travel expenses authorized by section 1033.5 are those to attend depositions. [Citation.] Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation.”

Plaintiff’s

opposition contends that “[r]easonable travel costs by the attorney during the course of litigation are compensable.” (Opp., 9:10-11.) In support, Plaintiff cites *Roe v. Halbig* (2018) 29 Cal.App.5th 286, 312, where the court “observe[d] that attorney fees for travel hours may be awarded if the court determines they were reasonably incurred.” However, there, the court addressed travel charges in the context of awarding attorney fees.

Plaintiff

further contends that the challenges to “[t]he amount charged for travel time and expenses and parking fail because this Court demands certain hearings be attended in-person. Moreover, [The Barry Law Firm’s] travel time is recoverable as long as the decision to attend the deposition/inspection/hearings in person was reasonable... Although it may have been reasonable to appear remotely for certain depositions, it was eminently reasonable for TBLF to be physically present at the depositions of its own client, parties to the action, and at hearings where significant issues, such as trial, were at issue. Plaintiff’s counsel appearing in person for Plaintiff’s deposition and the inspection of the subject vehicle is reasonable to effectively advocate for Plaintiff’s interests.” (Opp., 9:22-10:2.) Moreover, Plaintiff contends that “[w]hile CCP § 1033.5 does not specifically list ‘travel and parking costs’ as a recoverable cost, it does not preclude them either. (Costs not expressly mentioned in statute are allowable at the trial court’s

discretion.) Indeed, attending the hearings in this matter were absolutely necessary to the prosecution and settlement of this case, especially where in person attendance is demanded.” (Opp., 10:3-6.)

BMW properly disputes the travel costs Plaintiff seeks to recover. Plaintiff’s opposition asserts that some hearings are required to be attended in person; however, Plaintiff does not clarify which mileage and parking costs are for hearings required to be attended in person. Additionally, Plaintiff mentions attending depositions in person. The Court notes that “[t]ravel expenses to attend depositions” are expressly recoverable. (Code Civ. Proc., § 1033.5, subd. (a)(3)(C).)

The Court finds that Ladas, supra, is the applicable precedent on this issue; as a result, the Court taxes travel (mileage and parking) costs incurred by Plaintiff’s counsel when not related to depositions. Accordingly, the Court taxes a total of \$561.70 for local travel.

Conclusion

Based on the foregoing, BMW’s motion to tax costs is GRANTED IN PART. The Court taxes Plaintiff’s requested costs by \$561.70, for a total cost award of \$20,132.65.

BMW is ordered to provide notice of this Order.

DATED: August 10, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court